

The court **DENIES** Plaintiff NANCY SIERRA's motion for a new trial.

The court entered judgment on 3/12/26, and the court clerk mailed the judgment to the parties on 3/12/26. (ROAs 623, ROA 624.) Thereafter, Plaintiff timely filed a notice of intention to move for new trial on 3/26/26. (ROA 635.)

As Defendants POPA FEDERAL CREDIT UNION and LESLIE LARA note, Plaintiff thereafter filed *untimely* supporting papers for the motion without requesting or obtaining an extension of time to do so. Concerning motions for new trial, the Code of Civil Procedure states, "within 10 days of filing the notice, the moving party shall serve upon all other parties and file any brief and accompanying documents, including affidavits in support of the motion." (Code Civ. Proc., § 659a.)

Although due by Monday, 4/6/26, Plaintiff did not file her supporting papers until 4/20/26 — i.e., 26 days after the notice was filed (and over twice the statutory time period to do so). (ROA 640.) Plaintiff also thereafter filed a supplemental letter brief in support of the motion on 4/22/26, which contained additional exhibits in support of the motion. (ROA 642.)

The court does not consider the untimely papers. Both the memorandum (ROA 640) and supplemental letter brief (ROA 642) are untimely under section 659a. No extension of time for filing was requested or granted, good cause for an extension was not shown, and any extension of time cannot exceed 10 days. (See Code Civ. Proc., § 659a ["These deadlines may, for good cause shown by affidavit or by written stipulation of the parties, be extended by any judge for an additional period not to exceed 10 days."].)

The only timely supporting document filed by Plaintiff was the notice of intention to move for new trial (ROA 635), which is insufficient to warrant granting the motion. According to that document, Plaintiff moves for a new trial on the grounds of: (1) irregularity in the proceedings of the court, (2) insufficiency of the evidence, and (3) error in law.

A motion for a new trial based on the first four grounds enumerated in the statute (irregularity in proceedings, jury misconduct, accident or surprise, and new evidence) must be made on affidavits. (Code Civ. Proc., § 658.) A motion based on one of the remaining grounds must be made on the minutes of the court. (*Id.*; *Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1192.) The “minutes of the court” include the records of the proceedings entered by the judge or courtroom clerk, showing what action was taken and the date it was taken, and may also include depositions and exhibits admitted into evidence and the trial transcript. (*Id.*)

Plaintiff’s first ground (i.e., irregularity of proceedings) fails because it must be made on affidavits and there is no timely affidavit filed.

Plaintiff’s second and third grounds (insufficiency of evidence and error of law) must be made on the minutes of the court. There are no minutes supporting the motion for new trial.

Finally, the court notes that Plaintiff is incorrect when arguing that “[a]s a self-represented litigant, Plaintiff’s filings are entitled to liberal construction.” (Reply Br., at p. 2, lines 18-19.) In support of the argument, Plaintiff cites to *Rappleyea v. Campbell* (1994) 8 Cal.4th 975 and *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826. *Rappleyea* make clear that self-represented litigants must comply with the same procedural requirements applicable to attorneys. (See *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984–985 [“we make clear that mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation.”].) *Aguilar* deals with the standards applicable with summary judgment motions and makes no mention of any leniency for a self-represented litigant.

In sum, the motion is DENIED.

Defendants to give notice.